IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

State of Oregon
Plaintiff

vs

_____
Defendant

DOB: _____

SID# *if known*: _____

Case No: _____
(leave blank if no court case)

MOTION TO SET ASIDE AND SEAL AND DECLARATION OF ELIGIBILITY

No Filing Fee
Contempt of Court - Child Support

Citing/arresting law enforcement agency*:* _____
(Example: Salem Police Dept. or Coos County Sheriff)

Arrest Date: _____
(*If no arrest date, list date of citation, booking, or incident*)

Fingerprint number (FPN #) *if known:* _____

ELIGIBILITY STATEMENT AND LEGAL BASIS

I am eligible and move for a set aside of my record because the following is true ***(check one option only)****:*

Option 1: ☐ There was a court case, and **I was convicted on at least one charge** (or found guilty except for insanity (GEI) or in contempt of court), and:

☐ I believe all the charges in this case are eligible, and I am moving to set aside all charges, including charges which were dismissed or acquitted
or
☐ Not all the charges on this case are eligible. I am moving to set aside only the following charges:

Name of Charges	Count #

☐ I have additional charges to provide, and they are attached on a separate page

Option 2: ☐ There was a court case, and I am not moving to set aside any convictions. I am moving to set aside all eligible **dismissed or acquitted charges only**.

Option 3: ☐ I was **cited or arrested** and there was **no court case.** I am moving to set aside the citation or arrest records.

Name of Citation/Arrest Offenses
•
•
•

•
•

☐ I have additional offenses to provide, and they are attached on a separate page

DECLARATION OF ELIGIBILITY

These 4 statements must be true to be eligible. Check all that apply:

☐ I have waited the required period under law to file this *Motion*
☐ I believe I am legally eligible for a set aside
☐ I have filed fingerprints with the Oregon State Police
☐ I will serve a copy of this *Motion* on the prosecuting attorney

And

*If you selected **Option 1** above, all of the following must also be true. Check all that apply:*
☐ I am not currently charged with a crime or contempt of court related to abuse or a person crime
☐ I have paid the Oregon State Police background check fee
☐ I have fully complied and performed all terms of the sentence of the court

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Date _____ Signature _____

Email _____ Name (typed or printed) _____

Address _____ City, State, ZIP _____ Phone _____

Certificate of Mailing

I certify that on *(date)*: _____ I placed a true and complete copy of this *Motion* in the United States mail to the prosecuting attorney at *(address)*: _____

_____

Date _____ Defendant (signature) _____

Defendant Name _____